

2015 SCC OnLine All 7156

In the High Court of Allahabad

Court No. - 34

(BEFORE SUDHIR AGARWAL AND RAM SURAT RAM (MAURYA), JJ.)

U.P. Rajya Vidyut Parishad Thru' Chairman &
Another ... Appellant;

Versus

Panjab Corbohydrate Thru' Partner Manu Kumar ...
Respondent.

First Appeal No. - 246 of 2007

Decided on November 23, 2015

Counsel for Appellant:— Nripendra Mishra

The Judgment of the Court was delivered by

SUDHIR AGARWAL, J. and RAM SURAT RAM (MAURYA), J.:— Heard learned counsel for the appellant and perused the record.

2. This appeal under Section 96 of Code of Civil Procedure has arisen from the judgment dated 8.5.2007, passed by Sri Umesh Kumar Uppar, Additional Civil Judge (Senior Division), Court No. 2, Ghaziabad, in Original Suit No. 909 of 1996, granting permanent injunction in favour of plaintiff-respondent and directing defendant-appellant for not raising any illegal assessment bill in respect of Electrical Connection No. 010162 of plaintiff-respondent, without referring the dispute to Electrical Inspector. Plaintiff instituted the aforesaid suit, stating that there is no allegation of theft of electrical energy and if defendant is of the view that meter is not running correctly, then, the matter ought to have been referred to Electrical Inspector under Section 26 of Indian Electricity Act, 1910 (hereinafter referred to as the "Act, 1910"), but without referring the same, they are illegally trying to propose an assessment against plaintiff in respect of the aforesaid electricity connection.

3. The matter was contested by defendant-appellant by filing written statement, in which, they did not dispute that they proposed to make an assessment of Rs. 17,25,399.04 against plaintiff, in respect of aforesaid electricity connection, on the ground that there is less recording of electrical consumption in his meter. It is however admitted that the matter was not referred to Electrical Inspector to check whether meter was correct or not and it is also not in dispute that there was no allegation of theft of electrical energy by plaintiff. Trial Court framed the following eight issues:—

1. क्या प्रतिवादीगण द्वारा वादी को जारी पत्र संख्या 2305 दिनांकित 10.6.96 वाद पत्र में वर्णित कारणों से अवैधानिक है, यदि हां तो प्रभाव?
2. क्या नोटिस दिनांक 10.6.96 वादी को प्राप्त हुए थे यदि हां तो प्रभाव?
3. क्या प्रतिवादीगण के विरुद्ध कोई वाद का कारण नहीं है?
4. क्या वाद यू.पी. जेड.ए.एल.आर. सन 1961 की धारा 283 ए से बाधित है?
5. क्या वाद का मूल्यांकन कम किया गया है?
6. अनुतोष यदि कोई जिसे पाने का वादी अधिकारी है?

दिनांक 28.2.2001 को निम्न वाद विन्दु विरचित किये गये:-

7. क्या इस न्यायालय को वाद का श्रवण क्षेत्राधिकार प्राप्त नहीं है जैसा कि प्रतिवाद पत्र के प्रस्तर 25 (ए.) में अभिकथित है?
8. क्या वाद ,उपभोक्ता विनियमावली 1984 के प्राविधान से बाधित है जैसा कि प्रतिवादपत्र प्रस्तुत 25 (ए.) में उल्लिखित है?

4. Issue 1 has been answered in favour of plaintiff, observing that admittedly, there was no case of theft of electrical energy against plaintiff and if defendant was of the view that there was some defect in meter, the same ought to have been ascertained by referring the matter to Electrical Inspector, but that was not done. Even a check meter was not installed and still defendant proposed an assessment, which was illegal. Issues 2 and 3 are answered against defendant. Issues 4, 7 and 8 were considered together and Court held that suit was not barred, since no provision could be shown by defendant before the Court below to justify alleged assessment. In the circumstances, suit was decreed.

5. Before this Court, Sri Nripendra Mishra, learned counsel for appellant, did not dispute that there was no allegation of theft of electrical energy against plaintiff. He submitted that it appears that meter did not record some consumption of electrical energy, which shows that there was some defect in meter, but in this respect, he also did not dispute that neither any check meter was installed, nor the matter was referred to Electrical Inspector, if there was a dispute regarding correctness of the meter.

6. Dispute in suit in question is of 1996. At that time, it was governed by the provisions of Act, 1910 and Electricity Supply Act, 1948 (hereinafter referred to as "Act, 1948"), read with Rules and Regulations framed thereunder. In case where supplier of electricity intends to raise supplementary bill, or a bill of an amount not founded on the reading of meter, on the ground that it had not recorded consumption of electricity correctly, Section 26(1) of Act, 1910 provides that such licensee would have to make a Reference to Electrical

Inspector, whose opinion in respect of meter where it has ceased to be correct or not, shall be final.

7. The Apex Court in *Madhya Pradesh Electricity Board v. Smt. Basantibai*, (1988) 1 SCC 23, has observed, if there is no allegation that meter has ceased to be correct on account of any tampering, etc., then dispute regarding correctness of meter shall be determined by Electrical Inspector. In paragraph 13 of judgment, the Court said:—

“13. We are, however, unable to accept this contrary view as it is obvious from the provisions of Section 26, Sub-section (6) of the said Act that dispute whether a meter is correct or faulty would come under the said provisions and not the dispute regarding tampering of meter. In our view, the view taken about the scope of Section 26(6) in the decisions cited above are correct. In the instant case the dispute relates to whether the meter is correct one or it is faulty not recording the actual energy consumed in running the oil mill of the respondent. So this dispute squarely falls within the provisions of the said Act and as such it has been rightly found by the High Court that it is the Electrical Inspector who alone is empowered to decide the dispute. If the Electrical Inspector comes to the finding that the meter is faulty and due to some defect it has not registered the actual consumption of electrical energy, then the Inspector will estimate the amount of energy consumed and will fix the amount to be paid in respect of such energy consumed within a period not exceeding six months. The appellant No. 1 is not competent pending the determination of this dispute by the Electrical Inspector to issue the impugned notice threatening disconnection of supply of electricity for non-payment of supplementary bill prepared and sent by it. The Board is also not competent to prepare and send a supplementary bill in respect of energy consumed by the respondent from the one phase which stopped functioning and did not record any consumption of energy. For the reasons, aforesaid we affirm the order of High Court and dismiss the appeal without costs.”

8. A perusal of the above shows that Electrical Inspector, if comes to conclusion that meter is faulty and has not registered actual consumption of electrical energy, it is the “Electrical Inspector”, who shall estimate amount of electrical energy consumed and will fix the amount to be paid and not the licensee.

9. After enactment of new Act, i.e. Indian Electricity Act, 2003 (hereinafter referred to as “Act, 2003”) and the Rules and Regulations framed thereunder, another matter came up before this Court in *Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Limited*, 2009 (74) ALR 701 wherein a similar provision, as it was earlier in Section 26, was made in Clause 5 and 6 of U.P. Electricity Supply Code, 2005. The Court said, if licensee claims that meter is not recording consumption

correctly, consumer has a right to ask the licensee to get meter tested by Electrical Inspector or at the laboratory of Nigam or by an independent agency, as the case may be. In this regard, notice has to be given to consumer. The Court in paragraphs 6 and 11 of the judgment said as under:—

“6. From reading of Clause 5.6(c)(iii) it is clear that this clause in unequivocal terms declares that the defective meter after sealing in presence of consumer, shall be tested, at licensee's lab/independent lab/Electrical Inspector, as agreed by the consumer. Therefore, the agreement by the consumer is essential for testing of the meter either at the laboratory of the Nigam or at the laboratory of some other independent agency. It further provides that option exercised by consumer once cannot be changed. The clause, therefore, empowers the authorities to seal the meter and get it tested with consumer's agreement. Since the clause operates harshly against the consumer it has to be construed strictly. The consumer has a right to get the meter tested with independent agency. The authorities, therefore, have a corresponding duty to apprise the consumer of the right. Failure to discharge this duty, which flows from Sub-clause (c)(iii) by the authorities while exercising their right to send the meter for testing, renders the entire proceedings for sealing the meter irregular and illegal.”

11. We are of the considered opinion that after sealing the meter the Nigam must serve a notice, on which it should be printed in bold capital letters, intimating the consumer or his representative to exercise his option either to get the meter tested by the Electrical Inspector or at the laboratory or at the laboratory of the Nigam or the consumer may exercise his option to get his meter tested from one of the outside agencies approved by the Nigam mentioned in the notice. Once the consumer exercises his option then immediately a date has to be fixed for testing of the meter in the presence of the consumer.”

10. In the present case, it is not the case of appellant that there was any tampering or theft, etc. on the part of consumer. The case of licensee was that meter has recorded less consumption and if that be so, licensee was bound to refer the matter to Electrical Inspector under Section 26(6) of Act, 1910. We required from learned counsel for appellant to tell us under which provision, assessment in the case in hand was proposed by defendant-appellant, but no specific provision could be shown. In view thereof, we find no fault or error, factual, legal or otherwise, with the impugned judgment, warranting interference.

11. Appeal is accordingly dismissed, after hearing it at the stage of Order 41 Rule 11 C.P.C.

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